OPTIONAL — DO NOT FILE UNLESS YOU COMPLETE IT TRUTHFULLY

This declaration is not part of the response. The response does not refer to it. File it only if you can truthfully fill in every blank, and only if you attach it to the response (Fed. R. App. P. 27(a)(2)(B)(ii): an affidavit contains facts only, not argument). The Government can obtain the prison's legal-mail logs. Leave out anything you are not sure of; do not guess dates.

UNITED STATES COURT OF APPEALS
FOR THE FIRST CIRCUIT

No. 26-1250
Manish Kumar v. United States

DECLARATION OF MANISH KUMAR
(28 U.S.C. § 1746)

1. I am the appellant. I am incarcerated at FCI Fort Dix, Fed. Reg. No. 83763-053. I am housed in the (circle one) EAST / WEST compound. My mailing address is: _____.

2. For each item, I state the date I received it, or that I never received it:

(a) Order to show cause, No. 26-1251, dated April 8, 2026: received on _____ / never received.
(b) District court order of April 17, 2026 reopening the time to appeal: received on _____ / never received.
(c) First Circuit order of May 8, 2026: received on _____ / never received.
(d) District court order of June 25, 2026 (certificate of appealability limited to two issues): received on _____ / never received.
(e) First Circuit order of July 1, 2026 (July 31 deadline to apply to expand the certificate): received on _____ / never received.
(f) First Circuit briefing schedule of August 17, 2026: received on _____ / never received.
(g) Government's motions dated September 11, 2026: received on _____ / never received.
(h) First Circuit order of September 30, 2026 (stay granted): received on _____ / never received.

3. I first learned that the certificate of appealability had been limited to two issues on or about _____, when _____.

4. I did not respond earlier to the Government's motion for summary disposition because _____.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct. Executed on _____, 2026, at FCI Fort Dix, New Jersey.

_____

Manish Kumar